

Again, Defendant argues discovery as of May 4, 2022, later confirmed by a June 10, 2022, Title Report. Thus, initially, the two-year statute of limitations would have run in May of 2024. However, even if viewed in the context of mistake and a three-year statute of limitation, the statute would have run in May of 2025; again, this is before the date the initial complaint was filed in July of 2025.

Equitable Estoppel: The elements of equitable estoppel are (1) the party to be estopped must be apprised of the facts; (2) he must intend that his conduct be acted upon or must so act that the party asserting the estoppel has a right to believe it was so intended; (3) the other party must be ignorant of the true states of the facts; and (4) he must rely upon the conduct to his injury. (*Schafer v. City of Los Angeles* (2015) 237 Cal.App.4th 1250, 1261, citing and quoting *Strong v. Co. of Santa Cruz* (1975) 15 Cal.3d 720, 425.)

While the FAC appears to attempt to plead facts to equitably estop Defendant from asserting statutes of limitation [FAC, ¶53], the allegations appear insufficient: In essence the new pleadings simply assert that Plaintiff could not have reasonably discovered the sale until May of 2022. (*Ibid.*) First, this allegation does not lead to the conclusion that a later date for the statutes of limitations should apply. Second, even in the alternative, the new allegations do not meet the elements. The Court would, however, allow leave to attempt to provide additional allegations to support a basis for estoppel or other means to avoid the statutes of limitation issues.

17. *Wen v. Wang, et al*, Case No. CIVSB2400408
Def. Wang's Demurrer and Motion to Strike Third Amended Complaint
5/20/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **SUSTAIN** as to the tenth cause for identity theft *without* leave to amend. The Court would **OVERRULE** as to the twelfth cause for civil conspiracy.

Case Summary

This is essentially a fraud case brought by a *pro per* Plaintiff. Plaintiff alleges that when she met Defendant Wang, he claimed to be a pastor. She alleges that he assured her that he would look after her home while she was away on a work trip, and she gave him a key based on that representation. However, she alleges that on January 21, 2021, she learned that Defendant Wang had forged Plaintiff's husband's name on a rental agreement with Defendant King. On that basis, Defendant King moved into the home. On this basis, she initially filed suit on January

17, 2024, against Defendant Wang and Defendant King. On October 22, 2024, she filed a First Amended Complaint. Following initial motion work, she filed the at-issue Third Amended Complaint (TAC), alleging twenty-one causes of action, including (1) fraud and deceit (as to Wang & Doe 1); (2) [omitted];¹ (3) trespass (as to all Defendants); (4) [omitted]; (5) [omitted]; (6) [omitted]; (7) [omitted]; (8) [omitted]; (9) [omitted]; (10) identify theft (as to Wang & Doe 1); (11) [omitted]; (12) civil conspiracy (as to all Defendants); (13) negligent infliction of emotional distress (as to all Defendants); (14) intentional infliction of emotional distress (as to all Defendants); (15) negligence per se (as to all Defendants); (16) violation of the unfair competition law (as to all Defendants); and (17) unjust enrichment (as to all Defendants).

This demurrer followed as to the tenth cause of action for identity theft and the twelfth cause for civil conspiracy.

Analysis

Tenth cause (identity theft): Relevant here, Plaintiff alleges that both she and her deceased husband's identities were stolen pursuant to the purported lease agreement between Defendants Wang and King. More specifically, she alleges that Defendant Wang stole the identity of Plaintiff by falsely assuming her identity as the owner of the Subject Property. She also alleges theft of the identity of Plaintiff's deceased husband by falsely assuming his identity as the landlord. (TAC, ¶¶23-26 & 139-140.)

Defendants correctly argue that Plaintiff's identity theft claim fails because the identity theft statutes under which Plaintiff brings this cause of action (namely, Civil Code, §§ 1798.92 - 1798.97) are intended to insulate a victim of identity theft against a third-party claim and are not intended to be used as an affirmative claim as Plaintiff is attempting to do so here. Thus, the statutes appear in apposite.

Under California's Identity Theft Act (CITA) enumerated under Civil Code sections 1798.92 through 1798.97, a "victim of identity theft" can bring an action for damages, civil penalties, and injunctive relief "against a claimant to establish that the person is a victim of identity theft in connection with the claimant's claim against that person." (Civ. Code, § 1798.93(a).) A "claimant" is defined as "a person who has or purports to have a claim for money or an interest in property in connection with a transaction procured through identity theft." (Civ. Code, § 1798.92(a).) A "victim of identity theft" is defined as "a person who had their personal identifying information used without authorization by another to obtain credit, goods, services, money, or property, and did not use or possess the credit, goods, services, money, or property obtained by the identity theft, and has submitted a Federal Trade Commission (FTC) identity theft report." (Civ. Code, § 1798.92(d).)

¹ Plaintiff's TAC maintains the old numbering and simply omits various causes of action from the prior version of the complaint. The Court references now-omitted causes of action for purposes of consistency in referencing the various causes of action.

Here, while Plaintiff alleges that Defendant Wang had “illegally claimed” an interest in Plaintiff’s and her late husband’s assets through the creation and use of the fraudulent lease agreement [TAC, ¶23], this allegation is insufficient to demonstrate a violation under the CITA because Defendant Wang did not obtain credit, goods, services, money, or property from a third-party claimant. Furthermore, Plaintiff does not allege that she has submitted an FTC identity theft report.

Twelfth cause (civil conspiracy): The elements of a civil conspiracy are (1) the formation of a group of two or more persons who agreed to a common plan or design to commit a tortious act; (2) a wrongful act committed pursuant to the agreement; and (3) resulting damages. (*City of Industry v. City of Fillmore* (2011) 198 Cal.App.4th 191, 212.)

Here, Defendants argue that Plaintiff’s conspiracy claim is insufficiently pleaded because the TAC does not sufficiently allege resulting damages because no assets were alleged to be wrongfully detained.

However, here, Plaintiff alleges that Defendants engaged in a civil conspiracy with each other by deceiving Plaintiff into relinquishing the keys to the Subject Property to Defendant Wang, who subsequently allowed Defendant King to move into the Subject Property without Plaintiff’s knowledge or consent. As a result, Defendants stole and obtained fair market value rental funds that Plaintiff could have earned from the rental of the Subject Property. Plaintiff further alleges that she suffered additional damages due to the following: (1) a Dyson vacuum cleaner was no longer working, (2) a whole set of brand new tableware is missing, (3) a cross is missing, (4) a piano was damaged, (5) a wall was damaged, and (5) electric bills were left unpaid. (TAC, ¶¶171-175, 181, 185, & 191.) Such allegations are sufficient to demonstrate the existence of resulting damages for a civil conspiracy claim in the pleading stage.

18. *Banks, et al, v. General Motors LLC, et al*, Case No. CIVSB2203661 (w/ consol. matters)
Plaintiffs’ Motion to Compel Further Responses to Requests for Production, Set 1
5/20/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **GRANT** Plaintiff’s motion and order Defendant to comply with this Court’s June 26, 2025, order as to request 10. The Court would find substantial justification to forgo sanctions at this juncture, as objections were not waived in the prior order and there appears a good faith attempt to comply. Notably, “[d]iscovery sanctions are intended to remedy discovery abuse, not to punish the offending party.” (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223.)